



File No.: EXP202308299

ARCHIVING RESOLUTION OF

WARNING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

FACTUAL BACKGROUND

FIRST: On May 15, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection (AEPD). The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are that the respondent is the administrator of an entity, (...), and is the owner of a property located at ***ADDRESS.1. It also states that the parents of the complainant reside in a property located on the same street, ***ADDRESS.2. The complainant asserts that the respondent has installed surveillance cameras on their property that are directed towards the public road, as well as towards the property of their family without authorization. They provide, among other things, images showing the location of the cameras and a recording in this regard. The images show the existence of a camera located at the top of the front facade of the respondent's property, oriented towards a pedestrian public road. Additionally, cameras are identified on the side of the aforementioned property: one at the top of the side facade, another under an exterior staircase, and two in the lower hallway of the same, directed towards the complainant's property and that of their family. Furthermore, the complainant provides a photograph of a camera located inside the property, behind the glass of a window, and claims that it is on the front facade facing the public road, although the photograph does not clearly identify its location. They also attach a photograph in which the complainant and a family member appear. The complainant asserts that the photograph was captured by one of the respondent's cameras, but provides no evidence of this fact. On the other hand, in one of the recordings provided, a camera is observed inside the respondent's property, oriented towards the complainant's property, specifically towards their kitchen area.

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Along with the above, the complainant provides a judgment related to a boundary dispute in which the entity (...) is identified as the owner of the parcel of the property where the surveillance cameras are located.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 15, 2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. On July 24, 2023, in response to the AEPD's request, the respondent provided various documents, highlighting the following aspects:

- It indicates that the owner of the property is the company (...). This is also evident from the different judgments provided regarding boundary disputes and easements.
- It asserts that the cameras installed by (...) are not directed towards the complainant's parents' property or the public road.
- It states that the complainant has cameras, of which photographs are provided, that focus on the property of (...).

THIRD: On August 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing after three months had elapsed since it was received by the AEPD.

FOURTH: On August 22, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the surveillance system installed on ***ADDRESS.1, and the possible capture of public space and third parties that could lead to the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in

accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on August 31, 2024, as stated in the acknowledgment of receipt in the file.

SIXTH: On August 31, 2024, a written statement of allegations was received from the respondent, the literal text of which is as follows:

"FIRST- That today, 31/08/2024, the initiation of a warning against her has been notified due to the complaint of A.A.A. who states:

1- That B.B.B. has installed surveillance cameras in the property located at ***ADDRESS.1, owned by (...) that are directed towards the public road, clearly capturing the property of A.A.A. and their family, without authorization for this.

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2- That B.B.B. has made recordings through a mobile phone, without the consent of his mother and her property.

With the claim, images of the location of the cameras and a recording in this regard are provided, as well as images and reports of the signs installed by the responding party on their property.

SECOND- That, to process a claim and, if applicable, initiate the actions and procedures provided for in Title VIII of the LOPDGDD Organic Law 3/2018, of December 5, on the protection of personal data and the guarantee of digital rights (LOPDGDD), graphic documents must be submitted along with the claim, which must be recent, properly dated, and allow for the assessment that the affected devices are currently operational, their characteristics, and their specific location, as well as to determine indicatively the extent of image capture in areas of habitual transit of the claimant, particularly in public spaces and/or in their own home. However, from the documentation provided, it cannot be concluded that there is an infringement affecting their own rights, as it has not been established that the reported cameras are operational or that they capture images of them or their property. Since the indicated requirements are not met, the claim CANNOT have any effect.

THIRD- That, among the documentation received, there is no evidence that B.B.B. has personally installed any camera on a third party's property.

FOURTH- That, among the documentation received, there is no evidence that B.B.B. has made recordings with his mobile phone that could constitute an infringement.

FIFTH- That, from the documentation provided by the respondent on 05/07/2023, it is evident the disregard that A.A.A. has for the truth and it is EVIDENCED by the graphic information provided, the IMPOSSIBILITY that cameras directed towards the public road (= to the north of the property of (...)) could capture images of the residence of the respondent, which is located to the south with respect to the property of (...).

SIXTH- The Constitutional Court has established as one of the basic pillars for the interpretation of sanctioning Administrative Law that the basic principles and guarantees present in the field of criminal law are applicable, with certain nuances, in the exercise of any sanctioning power of the Public Administration. By virtue of this principle, it is the responsibility of the Administration to prove the certainty of the alleged facts, without the interested party being obliged to prove their innocence in any case, so any insufficiency of evidence or when such evidence does not meet the required guarantees must lead to an acquittal. The Administration can only undermine the presumption of innocence by providing sufficient evidence obtained with the necessary guarantees on which the competent administrative body can base a reasonable judgment of culpability.

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SEVENTH - The evidentiary activity is a guarantee that the interested parties have at their disposal to gather essential data that supports their defense and provides certainty to the disputed facts in order to obtain a fair and reasoned resolution. Therefore, it is of interest as a practice of evidence:

---1) That this party be granted electronic access to the evidence that proves that B.B.B. installed the cameras located at ***ADDRESS.1, as claimed by the complainant.

---2) That this party be granted electronic access to the recordings from the residence of A.A.A. captured by the cameras installed at ***ADDRESS.1, which will allow for the verification of their operation and specific location.

---3) That this party be granted electronic access to recordings collected by the mobile device of B.B.B. regarding his mother and her property, which will allow for the verification of the type of data captured and the type of infringement committed.

---4) That the documentation in file no. E/01XX1/20XX, as well as its resolution, be submitted to this procedure.

EIGHTH - The normative content of fundamental rights requires their realization and, therefore, entails a duty of protection that translates into the positive obligation of public authorities to ensure effectiveness by facilitating the proposed means of evidence aimed at forming the judge's conviction, providing certainty for the final decision of the litigation.

NINTH - The rejection of a proposed means of evidence must be sufficiently motivated and reasoned regarding its irrelevance to the final resolution of the matter. "Consequently, the lack of practice of the admitted evidence or the inadmissibility of relevant evidence for the final decision without any motivation or with an arbitrary and unreasonable interpretation and application of legality must be attributable to the competent body" (STC 42/2007, of February 26, FJ 2). Cases of total lack of foundation or absolute incongruity in the motivation for the rejection of the proposed means are criticized, or when such motivation has been arbitrary or unreasonable, as they would break the harmony and coherence of our legal system in an insecure and discretionary process, without guarantees or procedural protection of fundamental rights. (STC 165/2001 of July 16 (LA LEY 7470/2001)).

REQUESTS:

1- That the proposed evidence be practiced to provide certainty to the reported facts and the veracity of the statements made by a manifest and repeated enemy of the defendant.

2- That the deadline for presenting evidence and allegations in defense of the interests of B.B.B. be suspended until the results of the evidentiary activity and all evidence against her are known, which will allow her to argue and reply with all guarantees.

3- That all information submitted be original and contain the minimum mandatory metadata inherent as established in the Technical Interoperability Standard (BOE-A-2011-13168 - BOE-A-2011-13169 - BOE-A-2011-13170) and Article 21 of Royal Decree 4/2010.

4- That all notifications be in digital format, in Spanish, and through the single enabled electronic address (DEHú).

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: On May 15, 2023, a complaint was received against B.B.B. for installing a video surveillance system in the residence located at ***ADDRESS.1.

SECOND: The residence located at ***ADDRESS.1 is owned by the commercial entity (...).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

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The physical image of a person, pursuant to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data, stating:

"‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment or combination, restriction, erasure or destruction;"

Images generated by a system of cameras or video cameras are personal data, thus their processing is subject to data protection regulations.

However, in this case, it is necessary to determine whether the respondent is responsible for such a system.

III

Conclusions

Article 4.7 of the GDPR defines the "data controller" or "controller" as the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for their appointment may be established by the law of the Union or of the Member States.

In accordance with the basic principles of sanctioning law set forth in Law 40/2015, of October 1, on the Legal Regime of the Public Sector, only natural and legal persons who are responsible for the acts constituting an administrative infringement can be sanctioned for such acts based on intent or negligence.

In this case, the ownership of the property where the video surveillance cameras are located does not belong to the respondent, so even if the facts constituted an infringement, it is not appropriate to initiate a warning procedure against them.

Consequently, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE THE WARNING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 5.1.c of the GDPR.

THIRD: TO NOTIFY this resolution to B.B.B.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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